

01 Affidavit Format Explained

Affidavit in Reply — Bombay High Court, writ matter, short reply
Dated: 05-09-2026

An **Affidavit in Reply** is a sworn statement filed by a respondent to answer and oppose a petition. It denies the petitioner's case, states the respondent's version, and asks the Court to dismiss the petition. It follows a fixed skeleton, and almost every sentence uses a set phrase.

1. The ten parts

All ten appear, in this order. None are optional.

#	Part	Form	Rules
1	Forum heading	IN THE HIGH COURT OF JUDICATURE AT [CITY]	First line. Bold, caps, centred.
2	Jurisdiction	[TYPE] JURISDICTION	Bold, caps, centred. Always ends with the word JURISDICTION. E.g. Civil Appellate; Ordinary Original Civil.
3	Case number	[PROCEEDING] NO. [NUMBER] OF [YEAR]	Bold, caps, centred. NO. and OF are fixed words.
4	Cause title	Names left, status tags right	Tags begin with three dots: ...Petitioner, ...Respondent No. 1. VERSUS on its own centred line. Respondents numbered 1., 2., 3.
5	Affidavit title	AFFIDAVIT IN REPLY ON BEHALF OF RESPONDENT NO. [N]	Bold, caps, centred. Always carries the respondent number.
6	Deponent clause	I, [NAME], ... do hereby solemnly affirm and state as under:	One sentence, not numbered. See the deponent rule below.
7	Numbered paragraphs	1. 2. 3. ...	Number bold, then full stop. One continuous sequence. Prayer is not part of it.
8	Prayer	(a) (b) (c)	Heading PRAYER bold caps. Letters bold. Lettered, never numbered with the body.
9	Jurat	Solemnly affirmed at [PLACE] / On this [Nth] day of [Month] [Year]	DEPONENT right, caps. Before Me left. Verb must match Part 6.
10	Verification	... contents of paragraphs 1 to [N] and the Prayer ...	Heading bold caps. Range must match the actual body count. Place and date repeat the jurat.

2. Deponent rule (Part 6)

- **Respondent is a person** → that person deposes: “the Respondent No.2 above named”.
- **Respondent is a company or authority** → an officer deposes for it: “the [designation] of the Respondent No.2 above named”. Never write “I am the Respondent No.2” for an organisation.
- Verb agreement: solemnly affirm → Solemnly affirmed; swear and affirm → Sworn.

3. Paragraph sequence (Part 7)

Para	Move	Opening words
1	Identity and perusal	“I say that I am the Respondent No.__ in the above Writ Petition and am well acquainted with the facts and circumstances of the case...”
2	Blanket denial	“At the outset, I deny each and every allegation, contention and submission made in the Writ Petition, save and except those specifically admitted herein...”
3	Preliminary position	“I say that the Petitioner has suppressed material facts... The action complained of has been taken strictly in accordance with law...”
4 onward	Substantive answers	“With reference to the averments made in the Petition, I say that the same are false, incorrect and denied...” — one paragraph per point answered
Last	Closing	“In the premises aforesaid, I say that the Writ Petition deserves to be dismissed with costs.”

4. Fixed phrases

Used in	Phrase
Deponent clause	the Respondent No.__ above named · do hereby solemnly affirm and state as under:
Paragraph 1	am well acquainted with the facts and circumstances of the case · I have perused the Petition and the documents annexed thereto · am competent to affirm this Affidavit in Reply
Blanket denial	At the outset, I deny each and every allegation, contention and submission · save and except those specifically admitted herein · misconceived, devoid of merits and is liable to be dismissed in limine
Preliminary position	has suppressed material facts · strictly in accordance with law and after following due procedure · No legal, constitutional or fundamental right... has been infringed
Substantive answer	With reference to the averments made in the Petition · the same are false, incorrect and denied · has failed to make out any case warranting interference · the extraordinary writ jurisdiction of this Hon'ble Court
Closing	In the premises aforesaid · deserves to be dismissed with costs
Prayer	I therefore respectfully pray that this Hon'ble Court may be pleased to: · grant such other and further reliefs as this Hon'ble Court may deem fit and proper
Verification	true and correct to my knowledge and belief · nothing material has been concealed therefrom

Date format: ordinal day + month + year — 5th day of September 2026.

5. Formatting

Element	Format
Forum heading, jurisdiction, case number, affidavit title	Bold, ALL CAPS, centred
PRAYER, VERIFICATION headings	Bold, ALL CAPS, centred
Cause title party names	Normal, left
Status tags (...Petitioner)	Right-aligned

VERSUS	Centred, own line
Paragraph numbers, prayer letters	Bold
Paragraph text	Normal, justified
DEPONENT	ALL CAPS, right-aligned
Before Me	Normal, left-aligned

Two rules that must never break

1. Verification verb in Part 6 matches the jurat verb in Part 9.
2. Paragraph range in Part 10 matches the actual number of body paragraphs. If the body has 6 paragraphs it reads "paragraphs 1 to 6". Copying "1 to 5" from a sample is an error.

6. Entities to extract

Entity	Meaning	Example
FORUM / CITY	The court and its seat	High Court of Judicature at Bombay / Bombay
JURISDICTION_TYPE	Side of the court	Civil Appellate Jurisdiction
CASE_TYPE / CASE_NUMBER / YEAR	The proceeding	Writ Petition / 3147 / 2026
PETITIONER	Party who filed the petition	Arjun Mehta
RESPONDENT	Party answering	Rohan Deshpande
RESPONDENT_NUMBER	Which respondent is replying	Respondent No. 2
DEPONENT	Person swearing the affidavit	Rohan Deshpande
CAPACITY	Deponent's role, if not the party himself	Deputy Metropolitan Commissioner
ORGANISATION	Company or authority party	Mumbai Metropolitan Region Development Authority
ADDRESS / AGE / OCCUPATION	Deponent details	Bandra East, Mumbai / 42 years / Business
VERIFICATION_VERB	affirm or swear	solemnly affirm
PLACE_OF_ATTESTATION / DATE	Where and when sworn	Mumbai / 5 September 2026
PARAGRAPH_COUNT	Number of body paragraphs	5

7. Reply moves

Move	What it does
IDENTITY_AND_PERUSAL	Who the deponent is, that he has read the petition, and that he is competent to reply
BLANKET_DENIAL	Denies everything not specifically admitted
PRELIMINARY_POSITION	Petition is misconceived; the action taken was lawful
SUBSTANTIVE_ANSWER	Answers a specific allegation
CLOSING	Petition deserves dismissal with costs
PRAYER_TO_DISMISS	Formal request to the Court

8. Fill-in template

IN THE HIGH COURT OF JUDICATURE AT [CITY]
[TYPE] JURISDICTION
[PROCEEDING TYPE] NO. [NUMBER] OF [YEAR]

[PETITIONER NAME, description, address] ...Petitioner

VERSUS

1. [RESPONDENT 1 NAME, description, address] ...Respondent No.1
2. [RESPONDENT 2 NAME, description, address] ...Respondent No.2

AFFIDAVIT IN REPLY ON BEHALF OF RESPONDENT NO. [N]

I, [DEPONENT NAME], [age / designation], [residing at / having office at]
[ADDRESS], [the Respondent No.[N] above named / the [DESIGNATION] of the
Respondent No.[N] above named], do hereby solemnly affirm and state as under:

1. I say that I am [the Respondent No.[N] / the [DESIGNATION] of the
Respondent No.[N]] in the above [PROCEEDING TYPE] and am well acquainted
with the facts and circumstances of the case. I have perused the Petition
and the documents annexed thereto and am competent to affirm this
Affidavit in Reply.
2. At the outset, I deny each and every allegation, contention and submission
made in the [PROCEEDING TYPE], save and except those specifically admitted
herein. I say that the Petition is misconceived, devoid of merits and is
liable to be dismissed in limine.
3. I say that [preliminary position]. The action complained of has been taken
strictly in accordance with law and after following due procedure. No
legal, constitutional or fundamental right of the Petitioner has been
infringed.
4. With reference to [the averments made in the Petition / the specific
allegation], I say that [substantive answer].

[N]. In the premises aforesaid, I say that the [PROCEEDING TYPE] deserves to
be dismissed with costs.

PRAYER

I therefore respectfully pray that this Hon'ble Court may be pleased to:

(a) dismiss the present [PROCEEDING TYPE] with costs;

(b) refuse any interim or ad-interim relief sought by the Petitioner; and

(c) grant such other and further reliefs as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case.

Solemnly affirmed at [PLACE]

On this [Nth] day of [MONTH] [YEAR]

DEPONENT

Before Me

VERIFICATION

I, [DEPONENT NAME], the Deponent above named, do hereby verify that the contents of paragraphs 1 to [N] and the Prayer above are true and correct to my knowledge and belief and that nothing material has been concealed therefrom.

Verified at [PLACE] on this [Nth] day of [MONTH] [YEAR].

DEPONENT

9. Not covered here

The sample does not contain these, so no format is prescribed: exhibit references · advocate / drafting block · para-wise reply · tribunal and board formats (BEFORE THE...) · statutory citations, case-law citations, monetary amounts.